



Supreme Court Chronicle



Issue VIII | Summer Vacation Edition | June 2024

Highlights

- *A Conversation with Justice A S Bopanna*
- *Upholding the scale of justice and ensuring continuous accessibility — Supreme Court of India during summer vacation*
- *POSH Training*





Dear Readers,

I am happy to introduce the 8th edition of *Supreme Court Chronicle*. Although the official vacation of the Court has begun, there is still much to discover about its workings during this time. Within these pages, readers will find an insightful interview with Justice A S Bopanna, who has shared his valuable advice and interesting journey in both personal and professional spheres.

We have special vacation benches which are taking care of the cases listed before the Court. Apart from judicial proceedings, readers will also learn about the hard work judicial branches put in to ensure smooth access to justice. This month's edition offers a sneak peek into ongoing projects and much-needed futuristic technological upgrades in several courtrooms, which are otherwise cumbersome to implement when the Court is in full session.

The newsletter provides a comprehensive overview of recent judgments and updates on the recent Supreme Court initiatives, such as POSH training for the staff at the residential offices of the Judges. Additionally, readers can look into the roundup of key events for May 2024.

During the ongoing vacation, it is important to remember that the doors of Justice never take a break. Hence, the vacation benches ensure no plea goes unheard. Meanwhile, the designated vacation allows the Court and its administration to undertake projects enhancing the judicial productivity and give Judges time to write judgments ready to be pronounced immediately after the vacation. I hope you will discover a new side of the Supreme Court which often goes unnoticed, while staying attuned to the ongoing projects of our Registry.

Happy Reading!

Dr Justice D Y Chandrachud
Chief Justice of India

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Fresh from the Bench

Chander Bhan (D) Through Lr Sher Singh v Mukhtiar Singh, 2024 INSC 377

Applicability of Doctrine of lis-pendens

In its judgment dated 3 May 2024, a two-judge bench comprising **Justice Sudhanshu Dhulia** and **Justice Prasanna B Varale** held that the non-applicability of the provisions of Section 52 of the Transfer of Property Act, 1881 (TPA) would not bar the applicability of principles of lis-pendens, which are based on justice, equity, and good conscience. The Court noted that there can be no doubt that even if Section 52 of the Transfer of

Property Act, 1881 is not applicable in a particular state, the principles of lis-pendens would be applicable. The Court recorded that the doctrine of lis pendens contained under Section 52 of TPA is for maintaining a status quo that cannot be affected by an act of any party in a pending litigation. The Court said that the objective of the doctrine is to prevent multiple proceedings by parties in different forums.

Arvind Kejriwal v Directorate of Enforcement, 2024 INSC 400

Interim Bail Order in Arvind Kejriwal Arrest Case

In its order dated 10 May 2024, a two-judge bench comprising **Justice Sanjiv Khanna** and **Justice Dipankar Datta** granted interim bail to Delhi Chief Minister Arvind Kejriwal till 1 June 2024. The Court held that ignoring the peculiarities of Kejriwal's case would be wrong, especially in the backdrop of the Lok Sabha elections. The Court rejected the argument raised on behalf of the prosecution that grant of interim bail on this account would be giving a premium of placing the politicians in a beneficial position compared to ordinary citizens of this country. The Court further noted that while examining the question of grant of interim bail, the courts always take into consideration the peculiarities associated with the person in question and the surrounding circumstances. In fact, to ignore the

same would be iniquitous and wrong. The Court observed that the appellant – Arvind Kejriwal is the Chief Minister of Delhi and a leader of one of the national parties. The Court noted that serious accusations have been made against him, but he has not been convicted. He does not have any criminal antecedents. He is not a threat to society.

The Court also noted that the investigation in the case has remained pending since August 2022, when Enforcement Directorate registered the case, and the legality & validity of Kejriwal's arrest are themselves pending challenge. The Court said that considering that the matter is sub-judice as well as Lok Sabha Elections are ongoing, a more holistic and libertarian view is justified.

Bar of Indian Lawyers through its President Jasbir Singh Malik v DK Gandhi PS National Institute of Communicable Diseases, 2024 INSC 410

Advocates not liable under Consumer Protection Act for deficiency of services

In its judgment dated 14 May 2024, a two-judge bench comprising **Justice Bela Trivedi** and **Justice Pankaj Mithal** held that advocates would not be covered under the ambit of Consumer Protection Act, 1986, as re-enacted by the Consumer Protection Act 2019. The Court held the following:-

- i. The very purpose and object of the CP Act 1986 as re-enacted in 2019 was to provide protection to the consumers from unfair trade practices and unethical business practices, and the Legislature never intended to include either the ‘Professions’ or the services rendered by the ‘Professionals’ within the purview of the said Act of 1986/2019.
- ii. The Legal Profession is sui generis i.e. unique in nature and cannot be compared with any other Profession.
- iii. A service hired or availed of an Advocate is a service under “a contract of personal service,” and therefore, would fall within the exclusionary part of the definition of “Service” contained in Section 2 (42) of the CP Act 2019.
- iv. A complaint alleging “deficiency in service” against Advocates practising Legal Profession would not be maintainable under the CP Act, 2019.

Bhikchand s/o Dhondiram Mutha (Deceased) Through Lrs. v Shamabai Dhanraj Gugale (Deceased) Through Lrs., 2024 INSC 411

Restitution under Section 144 Civil Procedure Code, 1908

In its judgment dated 14 May 2024, a two-judge bench comprising **Justice Hrishikesh Roy** and **Justice Prashant Kumar Mishra** held that if after knowing that the decree was likely to be reversed, a stranger auction purchaser (not being party to the proceedings) purchases the property in execution of the decree, then he couldn't claim the protection of being a bona fide purchaser and the principle of restitution would apply in such circumstances.

The Court referred to the case of *Chinnamal v Arumugham, AIR 1990 SC 1828* to ascertain whether a stranger purchaser would be entitled to retain the property by the principle of restitution. The court said that the true question in each case, therefore, is whether the stranger auction purchaser knew of the pending litigation about

the decree under execution. The Court observed that if the evidence indicates that he had no such knowledge he would be entitled to retain the property purchased being a bona fide purchaser and his title to the property remains unaffected by subsequent reversal of the decree. The court by all means should protect his purchase. But if it is shown by evidence that he was aware of the pending appeal against the decree when he purchased the property, it would be inappropriate to term him as a bona fide purchaser. In such a case the court also cannot assume that he was a bona fide or innocent purchaser for giving him protection against restitution. No assumption could be made contrary to the facts and circumstances of the case and any such assumption would be wrong and uncalled for.

Rajendra s/o Ramdas Kolhe v State of Maharashtra, 2024 INSC 422

Principles related to Dying Declaration

In its judgment dated 15 May 2024, a two-judge bench comprising **Justice Abhay S Oka** and **Justice Ujjal Bhuyan** held that corroboration of the dying declaring statement isn't required when it inspires the confidence of the court to convict the accused. Referring to precedents, the Court reiterated the principles relating to dying declaration as follows:

- i. It cannot be laid down as an absolute rule of law that a dying declaration cannot form the sole basis of conviction unless it is corroborated;
- ii. Each case must be determined on its own facts, keeping in view the circumstances in which the dying declaration was made;
- iii. It cannot be laid down as a general proposition that a dying declaration is a weaker kind of evidence than other pieces of evidence;
- iv. A dying declaration stands on the same footing as another piece of evidence. It has to be judged in the light of surrounding circumstances and with reference to the principles governing weighing of evidence;
- v. A dying declaration which has been recorded by a competent Magistrate in the proper manner stands on a much higher footing than a dying declaration which depends upon oral testimony which may suffer from all the infirmities of human memory and human character;
- vi. In order to test the reliability of a dying declaration, the court has to keep in view various circumstances including the condition of the person concerned to make such a statement; that it has been made at the earliest opportunity and was not the result of tutoring by interested parties.

Kolkata Municipal Corporation v Bimal Kumar Shah, 2024 INSC 435

7 Sub-rights of Article 300A of the Constitution

In its judgment dated 16 May 2024, a two-judge bench comprising **Justice P S Narasimha** and **Justice Aravind Kumar** held that there are 7 sub-rights under Article 300A of the Constitution which are as follows:-

- i. **Right to Notice:** Duty of the State to inform the person that it intends to acquire his property.
 - ii. **Right to Be Heard:** The duty of the State to hear objections to the acquisition.
 - iii. **Right to A Reasoned Decision:** The duty of the State to inform the person of its decision to acquire.
 - iv. **Duty to Acquire Only for Public Purpose:** The duty of the State to demonstrate that the acquisition is for public purpose.
 - v. **Right Of Restitution or Fair Compensation:** The duty of the State to restitute and rehabilitate.
 - vi. **Right to an Efficient and Expeditious Process:** The duty of the State to conduct the process of acquisition efficiently and within the prescribed timelines of the proceedings.
 - vii. **Right of Conclusion:** Final conclusion of the proceedings leading to vesting.
- The Court stressed that these sub-rights mark the real content of the Right to Property under Article 300A. Non-compliance with these will amount to a violation of the right, being without the authority of law.

A Conversation with Justice A S Bopanna



Supreme Court Chronicle availed an exciting opportunity to interview Justice A S Bopanna, who is renowned for his insightful perspectives on social and legal issues. Born on 20 May 1959 in Coorg, Justice Bopanna has had a distinguished legal career. In fact, the Chief Justice of India, Dr D Y Chandrachud has also praised him as ‘Mr Dependable’ of the Supreme Court—likening him to cricket legend Rahul Dravid, for his reliability and steadfastness.

What inspired you to choose a career in law?

Initially speaking, law as a profession was not my first choice. In fact, I was aiming for other courses, particularly an MBA. However, during those days, MBA programmes were limited, with only a few universities offering them. I had applied for the course in Mangalore University, however, it was not meant to be. As an alternative, I opted Law without the initial intention of becoming a lawyer. It was only after the end of my final year that I developed an inclination and became sure of starting my practice. And once I joined the profession, I developed a deep passion for it and dedicated myself fully. Therefore, I can vouch that, regardless of whether one chooses law by choice or circumstance, success in this field requires serious commitment. Once you become a licensed lawyer and decide to practise, it is only the sheer hard work and dedication that can take you a long way. Once you choose to be a lawyer, you are a lawyer 24/7.

Interestingly, in 2006, the person who became the Vice Chancellor of Mangalore University, where I didn't get an MBA seat, was honoured at the same function where I was being felicitated as a High Court Judge. I often remark that if I had been accepted into

the MBA programme, I might have been a manager somewhere today instead of a Judge. Destiny indeed plays a unique role in our lives.

If someone is in a dilemma between judgeship and thriving practise, what advice would you give them?

The decision depends on one's priorities. Judgeship requires significant sacrifices, including an income and restricted personal freedom. The transition from a thriving practice, where financial rewards are often substantial, to a judgeship, can be challenging. However, it offers the opportunity to serve society and derive immense satisfaction from upholding justice. As a judge, one has the unique privilege of upholding justice, interpreting the law, and making decisions that can positively influence individuals and the community at large. If one is recognised as suitable for the role, one should consider accepting it despite the challenges.

Did your family play a role in your decision to pursue law, and how have they supported you?

I would entirely give my credit to my family, especially my wife and children. When I became a judge in 2006, both of my children were very small. They allowed me to work hard without any complaints. I owe my success and good name in the profession to my family's unconditional wavering support. They have been incredibly supportive throughout my career. They made numerous sacrifices, especially after I became a judge. Their understanding and support have been pivotal in my professional journey.

What do you think is the most pressing issue in the legal system today?

I believe that the most pressing issue is the need to expedite the litigation process. Different priorities exist for different individuals, but for the judiciary, quick and efficient resolution of cases is crucial. Therefore, finding ways to create a quicker litigation process and ensuring that decisions are made swiftly is of utmost importance. Given that litigation and the courts are the only options for litigants, it is crucial to make the process more efficient. I further believe that alternative avenues for dispute resolution, such as mediation and arbitration, also present valuable options for resolving conflicts efficiently.

During your time at the Karnataka High Court, you focused on the Bangalore Mediation Centre. Do you think mediation remains a viable option for pending litigation after the Mediation Act of 2023?

Absolutely! Mediation should ideally occur at the earliest stages of litigation, even before reaching the trial court. This proactive approach can prevent multiple rounds of appeals and revisions, saving both time and resources. Unfortunately, parties are initially reluctant to agree to mediation and many litigants opt for mediation only after the case reaches the Supreme Court. But it has to be kept in mind that early mediation can significantly reduce the burden on courts while resolving disputes more efficiently. Encouraging parties to consider mediation at the onset can promote quicker, cost-effective and satisfactory outcomes for all involved.

How do you perceive the role of the judiciary in upholding the rule of law and democracy in the current scenario?

Judiciary plays a vital role in upholding the rule of law and democracy. An independent judiciary

is essential for this purpose. Judicial institutions must remain strong and insulated from external influences to effectively safeguard justice. Judicial independence allows judges to make impartial decisions free from any pressure, ultimately ensuring equal justice for all citizens.

How has your litigation experience shaped your judicial mind as a Judge and as a Judge what is the habit that you think has helped you in your judgments?

Beginning my career at the grassroots of the legal profession has helped immensely in shaping my approach to the judiciary. Starting at the lowest levels of the profession allowed me to understand the struggles of litigants closely. This foundational experience provided me with a unique, firsthand understanding of the challenges and hardships faced by litigants. This taught me the importance of seeing each case through the eyes of those involved, irrespective of the case's monetary value or complexity. This experience helped me empathise with litigants and prioritise their needs, which has been beneficial in my judicial role. Every litigation, no matter the amount involved, is significant to the person seeking justice.

But one thing as a Judge that I learned over the years has been that I do not dwell on past cases, even the ones I have decided myself. This I count as a blessing because it prevents me from getting perturbed or prejudging new cases based on past decisions. While hearing a matter, I don't think about how I decided on a similar case before. This has been a plus point for me as it helps in maintaining objectivity. It is essential to understand and keep to the decided principles, but also to approach each case with a fresh perspective. As a judge, I don't attach myself to the cases I decide. This approach allows me to focus on the principles and facts of each new case without prejudice.

What advice would you give to young practising lawyers?

My advice is to start the practise on the trial side first, for a few years. Because that is where you will know all the nitty-gritty of the profession, it could help you modulate yourself and build a career. This experience provides a comprehensive understanding of the profession and the realities faced by litigants. Additionally, when joining a senior's office, be prepared to undertake clerical work to learn the intricacies of legal practice. It is essential that young lawyers practise for at least two to three years, in the trial courts as it allows for the development of crucial skills such as case preparation, courtroom procedures, and direct interaction with clients, which are fundamental to legal practise. This builds a solid foundation of practical knowledge which is invaluable for a successful legal career.

As a lawyer, our first duty is towards the litigant/clients, irrespective of what and how much they pay. In fact, this has helped me as a judge also, to know what the real problems of the litigants are. Throughout my career as a lawyer, I found no case to be small compared to others. Even if litigation is initiated by somebody for an amount under ₹5000 or even for just ₹ 3000, may be a small amount for many but for the litigant, it may be a huge amount worth the litigation which deserves the same dedication by the lawyer as it would be for any other case.

You have been in Delhi for many years now, what is something you reminisce about Coorg, and would you like to return there? Also are there any hobbies that you enjoy in your free time or anything new you wish to pursue?

Coorg offers a contrast to the bustling environment of Delhi, especially weather-wise. Although it has seen commercialisation over the years, Coorg retains its natural charm. While I may not settle there permanently, I would like

to spend a significant part of my retired life in Coorg.

So far as my hobbies are concerned, during my college days, I was actively involved in sports such as cricket, hockey, and table tennis. In college, my time was spent mostly on the playfield, which I had to give up after becoming a lawyer. Although, I did play a match for the judges' team at the Supreme Court, which reminded me of the good old days. However, at present, I don't have any particular hobby, but I might pursue something interesting after retirement.



Is there any one source of inspiration that you would like to share with the readers, especially the young people entering the legal profession?

My sources of inspiration are many and I have tried to learn and gather positive traits from everyone I ever encountered, while actively avoiding any negative influences. Life as I see it, is a continuous learning process and I have strived to improve myself based on my experiences. I learn something from everyone that I meet.

The young people entering the profession I would say that, as lawyers, you should be up to date. Even if you can't read judgments, you should know the facts. If you can't remember cases, you should know the principle laid down. Because the moment a client comes to you, you should be able to advise what is to be done.

Upholding the scale of justice and ensuring continuous accessibility—Supreme Court of India during summer vacation



Vacation Bench in session in Courtroom No 12

While the Supreme Court of India observes its scheduled vacation, it paradoxically takes on more work than on normal days. Demonstrating its institutional commitment, the Court remains accessible through three vacation benches each day, ensuring that doors to justice are always open. Even during these



Vacation Bench in session in Courtroom No 13

breaks, urgent matters, bail cases, and other critical petitions are promptly addressed. During this period, the Court efficiently undertakes projects requiring less footfall, such as renovations, necessary repairs, and technological advancements, benefiting from reduced digital traffic. To understand the Supreme Court's operations during vacation, *Supreme Court Chronicle* embarked on a mission to focus on major branches that continue their



Vacation Bench in session in Courtroom No 14

work without interruption. Mr Pavanesh D, Registrar, Judicial (Listing), Mr Puneet Sehgal, Registrar, Judicial (Administration), Ms Sujata Singh, Registrar (Judicial), and MrHargurvarinder S Jaggi, Registrar (Computer Cell), graciously allowed the team at *Chronicle* to take a closer look around.



Mr Pavanesh D, Registrar Judicial (Listing)

For the period of summer vacation, 20 Benches have been constituted. In addition to the regular matters, five types of pending matters are also being prioritised during vacation such as transfer petitions, bail matters, service matters, labour matters, and habeas corpus matters as per the directions of the Chief Justice of India. There are approximately 8,735 pending matters and 5,000 regular matters which were notified to the advocates in advance of two months to seek their confirmation for listing during summer vacation. The cases for which confirmation was received are listed before the vacation benches.



Ms Sujata Singh, Registrar (Judicial)

These Judicial branches in the Supreme Court function throughout the year without any break or gap. It is important to mention that even during the vacation, 24 sections constituting the Judicial Branch of the Supreme Court

Registry remain operational to address any urgent matters. No section is closed, in fact files, applications, and documents are processed daily. Advocates are also able to address defects by directly communicating with the responsible officers between 12:30 PM and 3:30 PM to prevent any inconvenience, similar to normal working days. However, the working staff is reduced to half for two weeks as per the roster during summer vacations. The Court continues to operate in hybrid mode, providing video conferencing facilities to ensure more accessibility and minimal inconvenience to litigants and advocates.



Mr Puneet Sehgal, Registrar, Judicial (Administration)

The Supreme Court of India is always open to the needs, queries and petitions of the general public. A notified vacation officer is stationed 24/7 for listing of urgent cases irrespective of holidays like Saturday, Sunday and general public holidays and even during summer vacation. In case of an urgent matter, parties can approach the vacation officer and a special bench may be constituted to hear the matter even on holidays, after the directions of the competent authority.

However, it is not only the judicial wing which is working day in and day out during this break, but the Computer Cell is equally busy.



*Normal day during the summer vacation
in the Listing Branch*

Meeting with the Registrar, Computer Cell, Mr Hargurvarinder S Jaggi, *Supreme Court Chronicle* found that there are 43 active projects in the pipeline out of which 18 important projects have been particularly allotted for the vacation period, most of which have a deadline before 20 June 2024. These projects are categorised into three groups:

(i) projects in the execution stage, (ii) big heavy duty infrastructure projects and (iii) projects at the development stage.



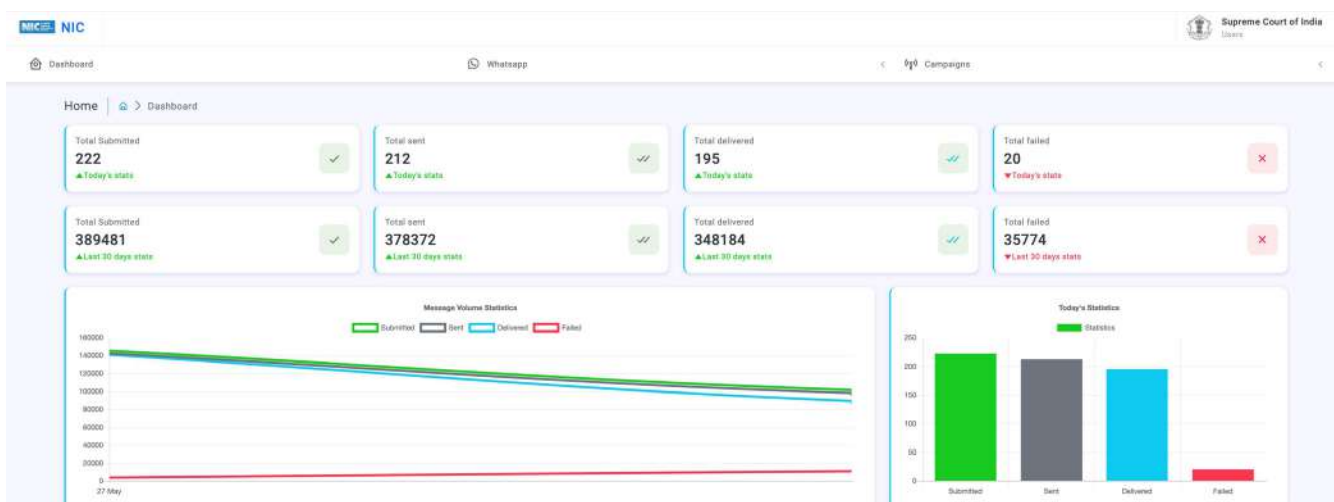
*Mr Hargurvarinder S Jaggi with his team discussing
about the ongoing projects*

One of the notable projects underway is the development of a new biometric attendance software designed to efficiently record the attendance of Supreme Court employees, including contractual staff. This advanced software will enable users to mark their attendance through standalone devices and mobile phones within a 50-metre radius of the designated office spaces. There is also the e-HRM 2.0 platform which is being adopted by the Supreme Court to provide several tailor-made facilities to 2300 employees of the Court including pending and approved leaves, reimbursement, loans, details of official tours etc.

During the vacations, the infrastructure of the Supreme Court is being renovated and revamped. This includes procurement of new routers of 10 Gbps and 15 user-friendly kiosks which will be installed at key locations for easy access of the litigants and advocates alike. Further, a Data Centre with 22 racks and a 154 sq feet area which is a state-of-the-art biometric locked secured facility is being developed followed by the development of sovereign cloud services. Further, the Supreme Court is also developing live streaming solutions which will be through its own platform rather than YouTube.

The Supreme Court is also in the process of developing an internal AI platform for generating summaries and key points of judgments. Till now 36000 Judgments of the e-SCR are fed into this platform and the AI chatbot can now answer questions regarding these judgments.

The Supreme Court of India has successfully integrated the WhatsApp messaging services with its Information Technology services which is providing up-to-date information on cases. Currently, the Computer Cell is in the process of integrating the same with the Suswagatam.



Screenshot of the data of the automated messages sent through WhatsApp

Talking about the importance of the vacation period and how workload doubled during this time, Mr Hargurvarinder S Jaggi, says *'We are in the process of upgrading the existing software which has not been done in many years. And to do such upgrades, changes or repairs, vacation is always a good time, since there is less traffic online and less footfall offline. We identify such major projects and reserve them for the vacation for a smooth and hassle-free completion of the same.'*

While we mention about the workload of the judicial and technological side, we cannot undermine the heavy-lifting work undertaken by the Admin General branch of the Supreme Court. Mr Mahesh Tanajirao Patankar who heads the branch as its Registrar, looks after the comprehensive renovation and construction projects which are being undertaken to enhance the infrastructure facilities of the overall Supreme Court premises including its additional buildings.

At present 27 major projects are in the pipeline which are all scheduled to be completed within the vacation period. Among such projects is the installation of air-conditioning units in the corridors in front of Courtrooms 1 to 5 in

the West Wing of the Court. A state-of-the-art Command and Control Centre, also referred to as a 'War Room', is being constructed which will be equipped with advanced monitoring and communication systems. This will serve as an



Ongoing repairs at Supreme Court during summer vacation



Courtroom no 6 among other courtrooms including 7, 8, and 9 being renovated to make them futuristic and technologically advanced during vacation

important centre, critical for managing overall court operations. There is also an ongoing effort to install two Justice clocks between Gates B & C and between Gates D & E, which will display the statistical information such as institution, disposal and pendency of cases in the Supreme Court of India, to the general public.

Keeping in mind the need for Creche (Child care centre) in the Additional building much like the one in the main building, dedicated rooms 201 and 202 on the second floor of E Block are being renovated for the same.

Vacation time is best utilised for renovation which includes the two waiting rooms opposite Courtroom 1-5 and the central lawns in the Court building. There is also a ramp which

is being constructed near room no GE-93 in the East Wing to improve accessibility for differently-abled individuals. While repairs and renovations are the major tasks taken up during the vacation by the Admin General, there are many such projects which are developed in order to create a very friendly infrastructure for lawyers accessing the premises of the Supreme Court. In pursuance of this facilities such as library and gym are set up in the Lawyers Chambers D-Block to support the needs of lawyers. Also, modular-type detachable flood barriers are being installed at the entry/exit of ramps in the Additional Building Complex, along with allied civil works to prevent flooding and water damage, especially during monsoon season.

Security gate at the high security zone from gate C of the Supreme Court premises under renovation during summer vacation



Supreme Court Events and Initiatives



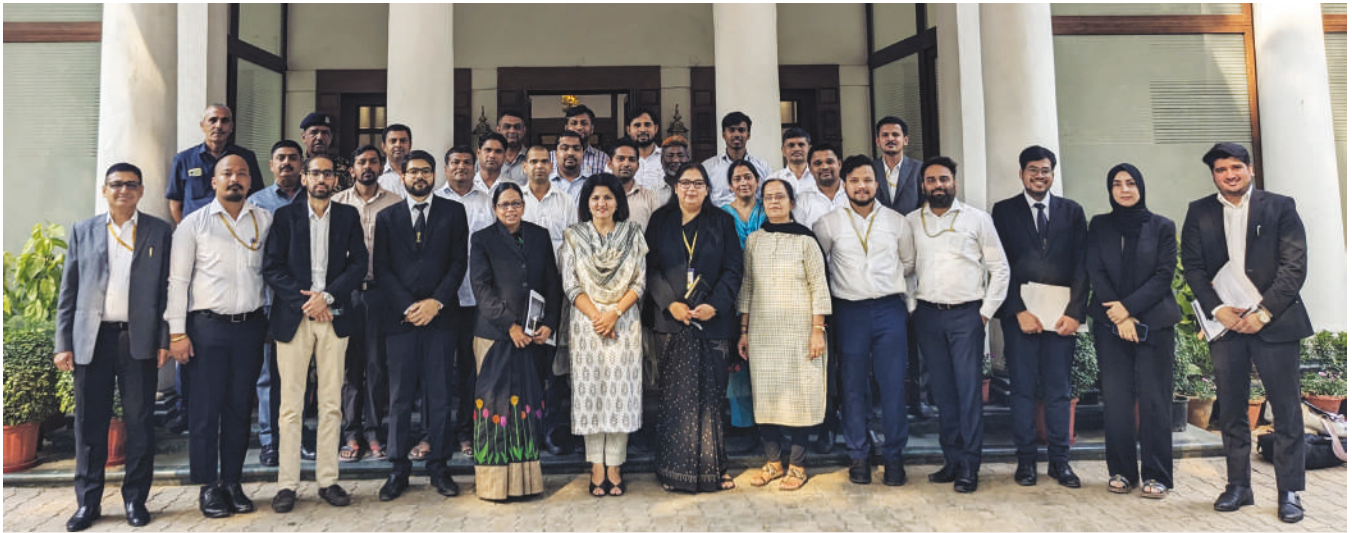
17 May 2024, Chief Justice of India, Dr D Y Chandrachud and Justice A S Bopanna during the ceremonial bench proceedings in Courtroom no 1

22-29 May 2024, SCAORA conducts a lecture series for AOR exam scheduled in June 2024



27-30 May 2024, Mr Puneet Sehghal, Registrar, Judicial (Administration), and Mr Pradip Yeshwantrao Ladekar, Registrar, Admn-II (Human Resource) at the "4th Research Conference of the AACC-SRD: Constitutional Rights and the Environment" organised by the Association of Asian Constitutional Courts (AACC) and Equivalent Institutions, Secretariat for Research and Development (SRD) at Seoul, South Korea

POSH Training



15 May 2024, Ms R Arulmozhiselvi, Additional Registrar (Training), Dr Sukhda Pritam, Additional Registrar-cum-Director (Centre for Research and Planning), and Ms Himani Sarad, Additional Registrar (Information and Statistics Secretariat and Communication Division) with the designated team conducts the POSH training for the staff deputed at the residential office of the Chief Justice of India



17 May 2024, Dr Sukhda Pritam, Additional Registrar-cum-Director (Centre for Research and Planning), along with her team conducts the POSH training for the staff deputed at the residential office of Justice Hima Kohli



24 May 2024, Ms Himani Sarad, Additional Registrar (Information and Statistics Secretariat and Communication Division), along with her team conducts the POSH training for the staff deputed at the residential office of Justice Sanjay Karol

21 May 2024, Ms R Arulmozhiselvi, Additional Registrar (Training), along with her team conducts the POSH training for the staff deputed at the residential office of Justice P S Narasimha



Legal Aid

On 11th May 2024, 2nd National Lok Adalat for the year 2024 was organised across talukas, districts, and at the High Court level in 20 States/Union Territories. The National Lok Adalat undertook different types of cases including compoundable offences, revenue cases, bank recovery cases, motor accident claims, matrimonial disputes (except divorce cases), cheque bounce cases,

labour disputes, and other civil cases. Pending court cases and pre-litigation cases were also taken up and settled. As per the data, 11,00,669 cases (including 6,94,450 pending cases and 4,06,219 pre-litigation cases) were settled in this particular Lok Adalat, wherein the total settlement amount was recorded to be around ₹ 3,525.77 crores.



11 May 2024, 2nd National Lok Adalat for the year 2024 being undertaken in Pulwama, Jammu and Kashmir



11 May 2024, 2nd National Lok Adalat for the year 2024 being undertaken in Samba, Jammu and Kashmir



11 May 2024, 2nd National Lok Adalat for the year 2024 being undertaken in Lamphelpat, Imphal, Manipur



11 May 2024, 2nd National Lok Adalat for the year 2024 being undertaken in Changlang, Arunachal Pradesh

Training Hub



9 - 13 May 2024, the Supreme Court of India conducts a four-day training program for the delegation consisting of 15 officials of the Supreme Court of Sri Lanka



11 May and 18 May 2024, Dr Rachna Wadhwa conducts a Compression Only Life Support (COLS) for the sixth and seventh batch of Registry officers and officials at the G B Pant Institute of Postgraduate Medical Education and Research, New Delhi



21-22 May 2024, Training cell in collaboration with Department of Personnel & Training (DoPT) conducts a training session on implementing e-HRMS 2.0 for Registry officers of the Supreme Court of India which was attended by 555 participants (266 in physical mode and 289 in virtual mode)

In the month of May, 2024, eleven 40-hour Mediation Training Programmes (MTP) and two 20-hour Refresher Programmes (RP) were conducted under the aegis of the Mediation and Conciliation Project Committee, Supreme

Court of India. Under the 40-hour programme, 4 trainings were held in Andhra Pradesh, 2 in Assam, 2 in Bihar, 1 in Chandigarh and 2 in Maharashtra. Whereas under the 20-hour programme, 2 trainings were conducted in Manipur.

Bar News Bulletin

Annual Election of the Supreme Court Bar Association was held on 16 May 2024, and the results were declared on 19 May 2024. The newly elected Executive Committee undertook the charge on 21 May 2024.



20 May 2024, Justice Sanjay Karol, Chief Guest, attends the farewell function of Justice A S Bopanna, organised by the Supreme Court Young Lawyers Forum

SCBA Scoop



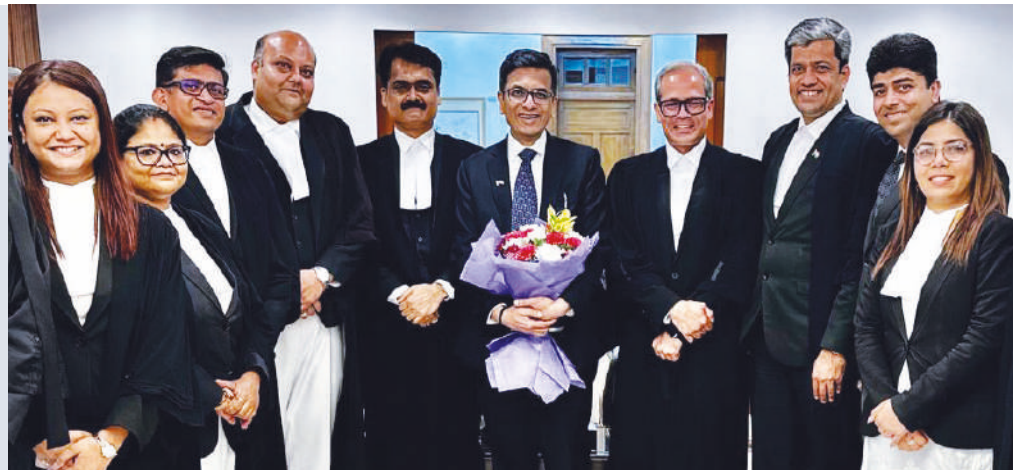
11 May 2024, Justice M M Sundresh, Justice Sanjay Karol, and Justice K V Viswanathan present the trophies to the winning team and other players at the SCBA Cricket Tournament held at Modern School, Barakhamba Road



17 May 2024, Chief Justice of India, Dr D Y Chandrachud along with Attorney General of India and SCBA members bestow a ceremonious memento upon Justice A S Bopanna during a heartfelt farewell

SCAORA

2 May 2024, the newly elected Executive Committee of SCAORA presents a bouquet to the Chief Justice of India, Dr D Y Chandrachud



15 May 2024, the SCAORA Executive Committee presents a memento to Justice A S Bopanna on the occasion of his retirement

Beyond the Court



4 May 2024, Justice C T Ravikumar chairing Session 2 -Development of Constitutional Morality: Adhering to the constitutional norms and ethos, during National Conference for High Court Justices on development of constitutional law by the Supreme Court and High Courts at the National Judicial Academy, Bhopal



4 May 2024, Justice Hima Kohli, Chief Guest, attends the 13th Indian Legal Awards 2023-24



5 May 2024, Justice Pankaj Mithal attends the convocation ceremony of 5 years and 3 years law students at Lloyd Law College, Greater Noida



7 May 2024, Justice Surya Kant delivers a lecture on 'Human Rights and its Development in India' in the 3rd Soli Sorabjee Memorial Lecture organised by the Commonwealth Lawyers Association in collaboration with SOLI (Society of Lawyers in India) and NIVAARAN (Mediators of Supreme Court of India)



8 May 2024, Justice Ahsanuddin Amanullah, virtually delivers a lecture on 'Importance of Ethics in Professions' organised by the LV Prasad Eye Institute, Vijayawada, Andhra Pradesh



10 May 2024, Justice Surya Kant and Justice K V Viswanathan at the book launch of 'Comparative Advertising: Law & Practise' authored by Senior Advocate Chander M Lal



18 May 2024, Justice Hrishikesh Roy at the Conference on India's Path in the Administration of Criminal Justice system at IIT Guwahati, Assam



18 May 2024, Justice Pankaj Mithal at the felicitation ceremony of lawyers who put 50 years and more in the legal profession, organised by the Bar Association, Meerut, UP

18 May 2024, Justice Rajesh Bindal and Justice Vikram Nath in Panel II : Regulatory Aspects of Forensic Sciences Sector of the High Power Expert Group meeting on strengthening criminal justice system through enhanced forensic efficiency organised by National Forensic Sciences University, Gandhinagar



19 May 2024, Justice Abhay S Oka along with Justice Aniruddha Bose, Director NJA, at the release of LexisNexis book on Crime, Punishment and Due Sentence: Judicial Approach to Guilt in Criminal Justice authored by Humayun Rasheed Khan, Additional Director (Research) in the Judicial Training and Research Institute, Lucknow, UP



*19 May 2024,
Justice Abhay S Oka,
chairs Session IV -
Designing Curriculum
for Specific Judicial
Needs at National
Judicial Academy,
Bhopal*

*22 May 2024, Justice M M
Sundresh at the foundation
stone laying function for
the construction of 10
Bungalows for the Judges;
five storey building for
the court halls; Judges'
Chambers; Sections/Offices;
and Record Room in the
Old Law College Campus,
Chennai*



*24 May 2024, Justice
C T Ravi Kumar,
at the VIT-AP
University's 7th
University Day*



25 May 2024, Justice B R Gavai at the “Mega legal awareness programme” organised by the Arunachal Pradesh State Legal Services Authority (APSLA), Namsai



26 May 2024, Justice Surya Kant, Chief Guest, attends the Law Summit organised by the Chandigarh Judicial Academy in collaboration with IIM Rohtak



27 May 2024, Justice Surya Kant, Chief Guest, at the fourth convocation ceremony at Chaudhary Ranbir Singh University (CRSU), Jind



Foreign Events and Conferences



4 May 2024, Chief Justice of India, Dr D Y Chandrachud delivers a keynote address at “National Symposium on Juvenile Justice,” Nepal

“

The establishment of a distinct juvenile justice system is a duty cast on the State in pursuance of its ‘parens patriae’ jurisdiction. The ‘parens patriae’ jurisdiction casts a three-fold duty on the State. Firstly, this philosophy emphasizes handling juvenile matters informally and grants juvenile courts the authority to decide what is best for young offenders. Secondly, it advocates for compassionate and rehabilitative treatments rather than punitive measures, aiming to avoid the negative consequences of labelling that can arise from formal court proceedings. Thirdly, it involves state intervention to shape the life outcomes of juveniles, reflecting a belief that traditional criminal law processes are not suited to effectively address juvenile delinquency and related issues.

...The Chief Justice of India

”



8 -10 May 2024, Justice B V Nagarathna with the Chief Justice of Supreme Court of Philippines, Alexander G Gesmundo, at the “2024 Asia and the Pacific Regional Conference of the International Association of Women Judges and the National Convention of the Philippine Women Judges Association,” Philippines

8 -10 May 2024, Justice B V Nagarathna, addresses the gathering in Session-I on the Theme : “Initiatives of Women Judges towards Gender Parity at All Levels of the Judiciary” in the Conference on “Women Lead : Transforming Asia-Pacific and Changing the World” - at the “2024 Asia and the Pacific Regional Conference of the International Association of Women Judges and the National Convention of the Philippine Women Judges Association,” under the aegis of the Supreme Court of Philippines at Cebu City, Philippines



8 - 10 May 2024, Justice B V Nagarathna, Judge Supreme Court of India with Maria Filomena D Singh, Associate Justice of Supreme Court of the Philippines and Lubna Zaha Additional District Judge Bangladesh at Session I- ‘Initiatives of Women Judges towards Gender Parity at All Levels of the Judiciary’ in the “2024 Asia and the Pacific Regional Conference of the International Association of Women Judges and 2024 National Convention of the Philippine Women Judges Association,” at Cebu City, Philippines

*12 May 2024,
Chief Justice of India,
Dr D Y Chandrachud
delivered a speech on
“Digital Transformation
to Enhance Judicial
Efficiency” at J20 Summit
in Rio de Janeiro, Brazil*



*20 May 2024,
Chief Justice of India,
Dr D Y Chandrachud at
India-Kazakhstan meeting
for judicial cooperation in
Almaty, Kazakhstan*

*20 May 2024,
Chief Justice of India,
Dr D Y Chandrachud met with
Chairman of the Supreme Court of
the Republic of Kazakhstan,
Mr Aslambek A Mergaliev in
Almaty to review India-Kazakhstan
judicial cooperation*





22 May 2024, Chief Justice of India, Dr D Y Chandrachud and Ms Kalpana Das pay flower tribute to former Prime Minister Lal Bahadur Shastri at the Shastri Bust in Tashkent, Uzbekistan



23 May 2024, Chief Justice of India, Dr D Y Chandrachud at the bilateral meeting with the Chief Justice of Uzbekistan, Mr Bakhtiyar Islamov at Tashkent, Uzbekistan



23 May 2024, Chief Justice of India, Dr D Y Chandrachud at the "XIX Meeting of Chief Justices/Chairpersons of the Supreme Courts of the Shanghai Cooperation Member States," at Tashkent, Uzbekistan



*Left to Right:
Mr Donal O'Donnel,
Chief Justice of Ireland,
Justice Sanjiv Khanna,
Judge, Supreme Court of India and
Mr Anders Eka, President
of the Network of the Presidents
at the centenary celebration of
Supreme Court of Ireland
in Dublin, Ireland*

*27 May 2024,
Justice Sanjiv Khanna and
Mrs Asha Khanna with the
President of Ireland,
Michael D Higgins at the
centenary celebration of
Supreme Court of Ireland
in Dublin, Ireland*



*30 May 2024, Justice Surya Kant at the event organised by Energy Dispute Arbitration Centre
in partnership with Ankara Bar Association, Turkey*

Upcoming events



SUPREME COURT OF INDIA



Special Lok Adalat 2024
29.07.2024 – 03.08.2024

The Supreme Court of India is organising a Special Lok Adalat week from 29 July to 3 August 2024. Advocates-on-record, Counsel and parties are requested to avail of the benefit of this mega settlement drive. Parties can appear both physically or virtually on the online platform to arrive at final settlements of their disputes.



BENEFITS OF SPECIAL LOK ADALAT

- + Swift compromise and settlement of disputes
- + Final and executable awards
- + Cost-effective resolution of disputes
- + Refund of Court fee

You can also contact your nearest
State / District / Taluka Legal Services Authority.

Information available at the website <https://www.sci.gov.in/>

Contact Details

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Phone: +91-11-23115656
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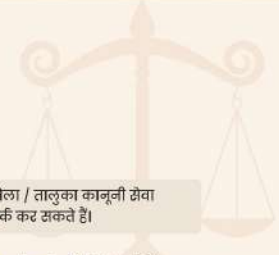


भारत का सर्वोच्च न्यायालय



विशेष लोक अदालत 2024
29.07.2024 – 03.08.2024

भारत के सर्वोच्च न्यायालय द्वारा 29 जुलाई से 3 अगस्त 2024 तक विशेष लोक अदालत सप्ताह का आयोजन किया जा रहा है जिसमें आपसी सहमति तथा समझौते के आधार पर मामलों का निपटारा किया जाएगा। सभी सम्बन्धित पक्षकारों, अधिवक्ताओं तथा सरकारी-नैरसरकारी प्रतिष्ठानों से अनुरोध है कि इस सुनहरे अवसर का लाभ उठावें। विशेष लोक अदालत में सशरीर अथवा आभासी (virtual) रूप से शामिल होकर समझौते की प्रक्रिया में भाग ले सकते हैं।



लोक अदालत के फायदे

- + त्वरित समझौता और विवादों का निपटारा
- + अंतिम और निष्पादन योग्य पुरस्कार
- + विवादों का लागत प्रभावी समाधान
- + कोर्ट फी की संपूर्ण वापसी

आप अपने निकटतम राज्य / जिला / तालुका कानूनी सेवा प्राधिकरण से भी संपर्क कर सकते हैं।

जानकारी वेबसाइट <https://www.sci.gov.in/> पर उपलब्ध है।

सम्पर्क हेतु विवरण

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ईमेल: special.lokadalat@sci.nic.in

Bilingual posters of Special Lok Adalat to be held by Supreme Court of India from 29 July 2024 to 3 August 2024

Special team under the supervision of Mr Santosh Kumar, Registrar (Judicial) SCLSC, at the designated war-room for the upcoming Special Lok Adalat, Supreme Court of India





Supreme Court of India
Tilak Marg, New Delhi-110001

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